Mithu Hundalani And Anr (Org Petitioner ... vs Kasim Abbas Goga And 6 Ors And Senior ... on 26 April, 2022

Author: Madhav J. Jamdar

Bench: Revati Mohite Dere, Madhav J. Jamdar

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RUPALI RAJESH WAKODIKAR
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Date: 2022.04.27 15:01:18 +0530

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

ORDINARY ORIGINAL CIVIL JURISDICTION
INTERIM APPLICATION (L) NO. 12679 OF 2022
IN
WRIT PETITION NO. 3192 OF 2021

Mithu Hundalani and Anr.
(Org. Petitioner Nos.1 and 2) ...Appl

Versus

Kasim Abbas Goga and 6 Ors. And
Senior Inspector (Respondent) ...Resp

Mr. Karl Tamboly a/w Mr. Manek Kalyaniwalla, with Mr. Vip
Mulla & Mulla and Cragie Blunt & Caroe, for the Applicant

Mr. Prakash G. Lad a/w Ms. Prerna Dhoke for the Responden
No.1/MHADA.

Mr. Milind More, A.G.P for the Respondent-State.

Mr. Gautam Ankad a/w Mr. Vikrant Zujarrao, Mr. Abhishek A
Sagar Vichare i/b Zunjarrao and Co. for the Respondent No

Mr. Mayur Khandeparkar a/w Mr. Rupesh Geete for the Respo

Mr. Sharaqn Jagtiani with Mr. Akshay Doctor a/w Mr. Rohan
Ms. Shailja Patel i/b The Juris Partners for the Responde

CORAM : REVATI MOHITE DERE &
MADHAV J. JAMDAR, JJ.

DATE : 26th APRIL, 2022 P.C. :

1. Heard learned Counsel for the parties.

2. During the course of arguments, learned Counsel for the

915. IA(L) 12679-2022.doc petitioners submitted that the petitioners are ready to co-operate in the inspection that would be carried out by the respondent No.1-MHADA.

Learned Counsel submits that since the petitioners are ready to co-operate in the inspection, the police are not required to remain present.

3. Learned Counsel Mr. Lad states that if the petitioners are ready to co-operate in the inspection that would be carried out by the MHADA Authorities, they will not seek police protection as earlier sought for vide letter dated 5th April, 2022.

4. Learned Counsel Mr. Lad, on instructions, states that the inspection will be carried out on 4th May, 2022. Mr. Tamboly, on instructions, states that the petitioners will co-operate to the said inspection, so carried out by the MHADA Authorities. Statement accepted.

5. Considering the statement made by the learned Counsel for the petitioners that the petitioners will co-operate with the MHADA Authorities, and the statement made by Mr. Lad, learned Counsel appearing for MHADA, nothing further survives for consideration in the application.

6. Liberty is granted to the petitioners to seek the relief, as sought

915. IA(L) 12679-2022.doc for, in prayer clause (c) in an appropriate application.

7. The said order is made without prejudice to the rights and contentions of either of the parties.

8. All contentions of all parties are kept open.

9. The application is allowed on the aforesaid terms and accordingly disposed of.

10. All concerned to act on the authenticated copy of this order.

11. Stand over to 6th May, 2022 for recording compliance.

MADHAV J. JAMDAR, J. REVATI MOHITE DERE, J.